

OFFICE OF THE SECRETARY

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October 30, 2018

The Honorable Peter C. Deddeh
Judge of the Superior Court
County of San Diego
P. O. Box 122724
San Diego, CA 92112

Re: Gustavo Flores
CDC No: H43209
Case No: SCD116295
Date of Sentence: April 15, 1996

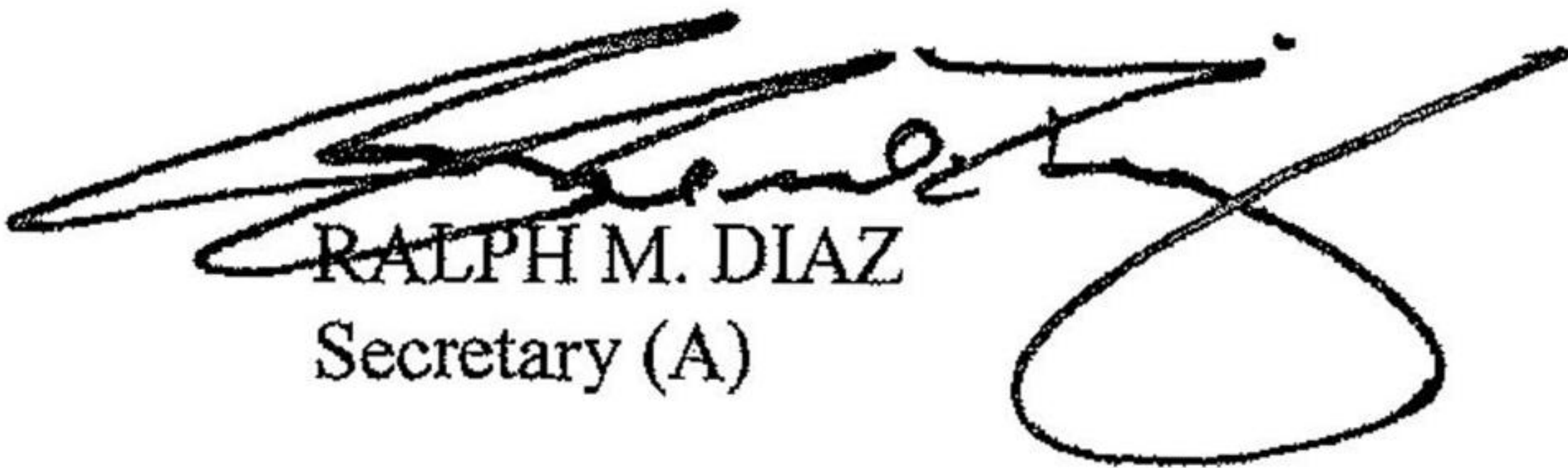
Dear Honorable Peter C. Deddeh:

The purpose of this letter is to provide the court with authority to resentence for, Gustavo Flores, pursuant to Penal Code Section 1170, subdivision (d)(1). Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Flores, H43209 is a 58-year old, third term offender received from San Diego County, on April 15, 1996, in Case Number SCD116295 pursuant to a conviction PC 459, Burglary 1st (Third Strike). He received a term of 40-years to Life and has a current Minimum Eligible Parole Date of July 10, 2027, and an Elderly Parole Eligibility Date of October 12, 2020. Inmate Flores has an active United States Immigration and Customs Enforcement detainer that was placed on May 20, 1996. However, he has strong family ties in the United States and has acquired desirable employment skills as a Welder while incarcerated. He has improved his communication skills and is currently proficient in English, Sign Language, and has successfully achieved a High School Equivalency Certificate, and completed college courses during his incarceration. He has no history of association with any Security Threat Groups. His prior offenses were non-violent and substance abuse was a contributing factor in those offenses, as well as his current offense. Inmate Flores has committed to an alcohol and drug free lifestyle, consistently participating in and embracing the philosophy of Alcoholics Anonymous and Narcotics Anonymous. During his incarceration, he has participated in numerous self-help, substance abuse, education, and religious groups. He has remained disciplinary free during his entire period of incarceration.

Having reviewed the enclosed documentation, it appears that inmate Flores's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced¹.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment - Determinate
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Michael M. Roddy, County Court Executive Officer
San Diego County District Attorney's Office
San Diego County Public Defender's Office

¹ Pursuant to *People v. Kemper* (1980) 112 Cal. App. 3d 434, (re)sentencing that results in an inmate being overdue for release will result in custody credits in excess of the inmate's maximum term of confinement being applied to shorten the parole term. If a court wishes to maintain what it considers to be an adequate supervisory term under those circumstances, the court may request the inmate waive enough credits to preserve an adequate supervisory term. If a court indicates in the abstract of judgement that custody credits have been waived by an inmate to allow for a specified parole term, CDCR will calculate the appropriate number of post-sentence credits that will need to be waived to allow for the specified parole term after the inmate's release